Suchitra

IN THE HIGH COURT OF BOMBAY AT GOA

CRIMINAL APPLICATION (BAIL) NO.77/2026

MOHAMMAD NASEER HAMIDI
Son of Naseer Hamidi, aged around 28 years, Afghanistan National r/o F Block, F-104, Lajpat Nagar Delhi 110 024 presently lodged in Judicial Custody at Central Jail Colvale through next friend Ms. Koyel Pramanik … APPLICANT

Versus

1. STATE OF GOA
Through Public Prosecutor, High Court of Bombay at Goa.

2. THE POLICE INSPECTOR, Mandrem Police Station Goa. … RESPONDENTS

Mr Vibhav Amonkar, Advocate for the Applicant.

Mr S. G. Bhobe, Public Prosecutor for Respondent Nos.1 and 2.

Mr P. Faldessai, Deputy Solicitor General of India for Respondent Nos.3 and 4.

CORAM: ASHWIN D. BHOBE, J.

DATED: 30th OCTOBER 2026

P.C. :

1. Heard, Mr Vibhav Amonkar, learned Advocate for the Applicant, Mr S. G. Bhobe, learned Public Prosecutor for Respondent Nos.1 and 2 and Mr P. Faldessai, learned Deputy Solicitor General of India for Respondent Nos.3 and 4.

2. By this Application filed under Section 483 of the BNSS, 2023, the Applicant seeks bail in connection with Crime No.69/2026 registered at Mandrem Police Station for offence punishable under Section 23(a) of the Immigration and Foreigners Act, 2025.

3. In brief, the prosecution case is that the Applicant was found travelling in the State of Goa without a valid visa and was therefore apprehended. The Applicant claimed to have a Refugee Card.

4. The Applicant was arrested on 30.07.2026. The Additional Sessions Judge-2, Mapusa, Goa, dismissed the Applicant's Bail Application No. 234/2026 vide order dated 17.10.2026.

5. Mr Vibhav Amonkar, learned Advocate for the Applicant, states that the Applicant holds a valid passport. He further states that the Applicant has applied for a VISA with the Foreigners Regional Registration Office (FRRO), Noida and that the application is pending. He further states that although the Applicant filed the application for a long-term VISA, the Applicant may not be entitled to it. He submits that the Applicant has been in jail for almost 90 days from the date of his arrest. He submits that if released on bail, the Applicant shall immediately apply for an X-Misc VISA (Miscellaneous Entry VISA) from the Competent Authority. He submits that the Applicant has no criminal antecedents.

6. Mr Vibhav Amonkar, learned Advocate for the Applicant, states that another person similarly placed to the Applicant, who was also arrested on 30.07.2026 for the offence punishable under Section 23(a) of the Immigration and Foreigners Act, 2025, was granted bail by the Court of the Additional Session Judge (FTC) in Bail Application No. 235 of 2026.

7. Mr Vibhav Amonkar, refers to paragraph 23 the decision of the Division Bench of this Court in the case of *Okoro Emanuel Chimeuecheya @ Eze v/s. Union of India and 2 Ors.*[1], which has made the following observation:-

> "***23.*** *A Foreigner, to mean a person, who is not citizen of India, is not allowed to continue his stay in India and must return back to his Country. In situation where he is accused of commission of an offence in the Country and is either convicted or awaiting the trial, his deportation is not possible. But, it is also necessary to track his movements and there can be no second view, on the power of the Government to regulate the entry and stay of Foreigners but, while in India, such a person is entitled to protection under Article 21 of the Constitution of India, which guarantees right to life and liberty as this right is not restricted to a citizen and is also applicable to a Foreigner. Since it is not permissible to deprive him of the liberty, without adhering to the procedure prescribed by law and since the law of the Country allow him to be released on*

1 Criminal Writ Petition796/2024 (F) & Connected Petitions decided on 04.08.2025.

bail, upon the Court being satisfied, that his detention/custody is not required, on the investigation being completed, we are of the view that by keeping him in detention centre, his right under Article 21 is infringed."

8. Mr S. G. Bhobe, learned Public Prosecutor for Respondent Nos. 1 and 2 – State, submits that the records indicate that the Applicant was found travelling in the country without a valid visa, relying on a Refugee Card, which is not a valid travel document or a document that authorises the Applicant to stay in the country. However, he submits that as the offence charged against the Applicant is under Section 23(a) of the Immigration and Foreigners Act, 2025, the Applicant's request can be considered, subject to the stringent condition that upon release on bail he immediately reports to the FRRO, Goa, and registers himself.

9. Mr P. Faldessai, learned Deputy Solicitor General of India for Respondent Nos. 3 and 4, states that the pending Application for visa, as submitted by the Applicant, is bound to be rejected, as the Applicant is not entitled to a long-term visa. However, he submits that the Applicant should apply immediately for an X-Misc VISA (Miscellaneous Entry VISA). If so applied, the Competent Authority would consider the same in accordance with law. He submits that the Applicant should be directed to report to the FRRO, Goa once a week and as and when required by the FRRO, Goa. He submits that the rights of the FRRO, Goa to take appropriate action in terms of law be expressly left open.

10. Perused the records with the assistance of the learned Advocates.

11. The offence under Section 23(a) of the Immigration and Foreigners Act, 2025 prescribes a maximum punishment of three years. The Applicant is in jail for almost 90 days from the date of his arrest. The investigation in Crime No. 69/2026 is complete.

12. Considering the aforesaid facts and the submissions made by the learned Advocates, this Application is allowed on the following conditions:

a) The Applicant is directed to be released on bail in Crime No.68/2026 registered at Mandrem Police Station on furnishing a personal bond of Rs.50,000/- (Rupees fifty thousand only) with two local sureties in the amount of Rs.25,000/- each.

b) The Applicant shall, within two (2) days of his release, furnish his residential address with proof and mobile number with WhatsApp facility and that of his sureties to the Investigating Officer and shall keep the Investigating Officer updated of any change, if any. The Investigating Officer shall verify the residential address and mobile number of the Applicant and that of his sureties.

c) The Applicant shall within two (2) working days of his release, register with the Foreigners Regional

Registration Office (FRRO), Panaji -Goa and inform, in writing to the Investigating Officer of having made such registration.

d) The Investigating Officer shall, through written communication, inform the Embassy of Afghanistan of the Applicant's involvement in Crime No.68/2026 registered at Mandrem Police Station.

e) The Applicant shall provide details of all his bank accounts in the country to the Investigating Officer within two (2) days of his release.

f) The Applicant shall remain present before the Trial Court whenever called upon for trial.

g) The Applicant shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer or tamper with the evidence and witnesses.

h) The Applicant shall not commit any offence during the period of bail.

i) The Applicant shall report to the Mandrem Police Station once in 15 days on the 3rd and 18th day of each month between 10.00 a.m. to 1.00 p.m. till the chargesheet is filed. The Applicant shall report to the Foreigners Regional Registration Office (FRRO) on every Monday of

the month between 10.00 a.m. to 11.00 a.m. or as and when required.

j) The Applicant shall not leave the country without the prior permission of Judicial Magistrate First Class at Pernem.

k) The Applicant shall deposit his passport with the Court upon grant of visa.

l) The Applicant shall not leave the State of Goa without prior written intimation to the Investigating Officer.

m) The Applicant shall, within three (3) days of his release, apply to the competent authority for a X-Misc VISA (Miscellaneous Entry VISA).

13. Criminal Application (Bail) No.77/2026 is disposed of in the above terms.

ASHWIN D. BHOBE, J.

Signed by: SUCHITRA NANDAN SINGBAL
Designation: Personal Assistant
Date: 30/10/2026 18:16:16